

IN RE: RADIE

CASE NUMBER: 26CV-0210405

Tentative Ruling on Petition for Change of Name: Petitioner Amber Marie Radie seeks to change her minor daughter's name. Proper proof of service of the father is on file. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated, and the file closed upon the processing of the Decree Changing Name.

IN RE: SCHMIDT

CASE NUMBER: 26CV-0210311

Tentative Ruling on Petition for Change of Name: Petitioner Lawana Lynn Schmidt seeks to change her name to Lawanna Lynn Schmidt. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated, and the file closed upon the processing of the Decree Changing Name.

SMITH VS. BRIDGEWAY INN & SUITES, ET AL.

CASE NUMBER: 23CV-0203137

Tentative Ruling on Motion to Substitute Successor in Interest: Plaintiff Frederick Smith ("Plaintiff" or "Decedent") moves for an order substituting Margaret Smith ("Successor") as successor in interest to Plaintiff.

Code of Civil Procedure 377.30 et seq. provides that a cause of action that survives the death of the person entitled to commence an action or proceeding passes to the decedent's successor in interest, subject to Chapter 1 (commencing with Section 7000) of Part 1 of Division 7 of the Probate Code, and an action may be commenced by the decedent's personal representative or, if none, by the decedent's successor in interest.

The Court finds that the causes of action alleged in this matter survive Decedent's death within the meaning of Code of Civil Procedure section 377.20, and that Successor has submitted a declaration satisfying the requirements of Code of Civil Procedure section 377.32, including a certified copy of Decedent's death certificate.

The motion to substitute Margaret Smith as successor in interest for Decedent Frederick Smith is **GRANTED**. The caption of this action shall be amended accordingly. Plaintiff is granted leave to file an amended complaint reflecting the substitution within 20 days of today's hearing. A proposed order has been lodged and will be modified.

U.S. BANK TRUST, N.A. VS. SELLS

CASE NUMBER: 22CV-0200669

Tentative Ruling on Motion to Substitute Successor in Interest: Plaintiff U.S. Bank Trust, N.A., as Trustee for LSF9 Master Participation Trust, moves to substitute Charles Sells in place of defendant Joe Tiegue Sells pursuant to Code of Civil Procedure sections 368.5 and 389. The Court is inclined to grant the Motion on the merits. However, as a threshold issue, the Court notes that Charles Sells has not yet appeared in this action. Proof of Service of this Motion by mail is on file. However, to ensure Charles Sells receives actual notice and the opportunity to be heard, the Court will require proof of service of the Motion in the manner of summons. Today's hearing is continued to **Monday, August 3, 2026 at 8:30 a.m. in Department 64**. Counsel may appear today and request an alternative date if desired.